

ON 1/8/26

FILED BY: HYDE, SUSAN

**\*TENTATIVE RULING:\***

**Background**

Defendant filed a Motion to Amend their Answer.

The Motion was timely served, and is unopposed.

**Analysis**

A trial court can permit the amendment of any pleading at any time. *CCP Section 473(a)*. In fact, courts should be quite liberal in permitting such amendments unless the statute of limitations has not expired, and the opposing party will not suffer prejudice. *Harris v. City of Santa Monica* (2013) 56 Cal4th 203, 240.

The factors for a court to consider include the moving party's conduct and the timeliness of the amendment *Duchrow v. Forrest* (2013) 215 CA4th 1359, 1377. An amendment that contradicts an admission in the original pleading should not ordinarily be allowed, unless the moving party shows that the admission was the result of mistake or negligence. *Astenius v. State* (2005) 126 CA4th 472, 476-477.

In the instant matter, there is nothing about Defendant's conduct, or the timeliness of the Motion, that would suggest to this court that leave should be denied. As stated in her declaration for this Motion, the defendant is elderly, self represented, and visually impaired. She filed this Motion soon after consulting with an attorney at a legal aid service, and less than eight months after the filing of the Complaint.

Moreover, there is nothing in the proposed Answer, which was included in Defendant's Motion, that is inconsistent with Defendant's initial Answer.

Finally, no trial date has been set.

**Disposition**

Defendant's Motion is granted.

Defendant to file Amended Answer within 10 days of this Order.

Defendant to file Order.

**HEARING ON DEMURRER TO: SECOND AMENDED COMPLAINT**  
**FILED BY: ATWATER, STEPHEN W**

**\*TENTATIVE RULING:\***

Defendant Stephen Atwater has filed a Demurrer (“Second Demurrer”) to the second cause of action in Plaintiff’s Second Amended Complaint (“SAC”), which was filed on 2/13/26. The SAC also alleges Professional Negligence in its first cause of action against the Defendant.

On 2/3/26, this court sustained Plaintiff’s Demurrer to all causes of action except the first, which alleged professional negligence, in Plaintiff’s First Amended Complaint (“FAC”), which had been filed 8/20/25. With respect to the third cause of action, alleging Defendant’s breach of contract, the court granted Plaintiff leave to amend.

Plaintiff has filed a timely response to the Second Demurrer.

**Background**

In the instant matter, the salient portions of the allegations are Defendant breached an implied-in-fact contract when he misdiagnosed Plaintiff’s cat, Chloe. The allegation is simply that Plaintiff “engaged Defendant Atwater’s services to diagnose and treat Chloe’s condition.” Page 5, SAC. Upon this engagement, “Plaintiff agreed to pay for veterinary services, and VCA Animal Hospitals agreed to provide competent veterinary oncology care.” Page 31, SAC.

Plaintiff specifically alleges that Defendant was authorized to provide oncology services, conducted a physical exam and recommended surgery, and after the surgery failed to disclose that the cat had been diagnosed with two types of cancer, per the lab results of the surgery, of which Defendant had knowledge. Defendant’s subsequent recommendation failed to include any course of treatment for the large cell lymphoma (the type of cancer which he had not disclosed to Plaintiff) which, according to the allegations, was the cancer that led to Chloe’s death soon afterward.

To be sure, there are no allegations that any terms of the agreement were written, nor that any terms were even discussed orally with Defendant. Yet Plaintiff invokes an agency theory of liability, claiming that Defendant was an employee and agent of VCA Animal Hospitals and acted on their behalf in providing services to Chloe, “and entering into the implied contract with Plaintiff.” Page 32, SAC. Plaintiff further claims that records and invoices “identified VCA Animal Hospitals as the provider of services, demonstrating that VCA Animal Hospitals was the contracting party.” Page 31, SAC.

Plaintiff further alleges the existence of the following terms:

The implied contract included terms requir(ed) VCA Animal Hospitals and Defendant Atwater to: (a) provide veterinary oncology services according to the applicable standard of care; (b) accurately diagnose Chloe's condition based on available diagnostic testing; (c) prescribe appropriate treatment based on the diagnosis; (d) provide safe medication with accurate dosing instructions; (e) respond to client safety concerns about medication discrepancies; and (f) comply with applicable California veterinary regulations.

Page 32, SAC.

Plaintiff goes on to allege that Defendant Atwater breached the contract by failing to accurately diagnose the cat's large cell lymphoma, and by prescribing treatment that was not appropriate for large cell lymphoma cancer.

The claims are virtually identical for the claim of Professional Negligence against the Defendant, in the First Cause of Action of the SAC.

### **Analysis**

A party may demur if "[T]he pleading does not state facts sufficient to constitute a cause of action." Section 430.10(e) of the Code of Civil Procedure. The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.

When a demurrer is sustained, the court must determine if "there is a reasonable possibility that the defect can be cured by amendment." *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. The burden rests on the plaintiff to prove the possibility of amendment. *Id.*

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. Leave to amend can be granted for a plaintiff to allege an omitted cause of action, based on the alleged facts. *Lee v. Bank of America* (1994) 27 Cal.App.4th 197, 216. However, leave to amend should not be granted where, in all probability, amendment would be

futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685. Also, a court does not have to grant leave to amend when the plaintiff has not requested such leave. *Thornton v. California Unemployment Ins. Appeals Bd.* (2012) 204 CA4th 1403, 1423.

Two of the elements for breach of contract require that: The parties entered into a contract; and, that the defendant failed to do something that the contract required him to do. *Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186. The formation of a contract requires that the contract terms were clear enough that the parties could understand what each was required to do. *Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 811. "The terms of a contract are reasonably certain if they provide a basis for determining the existence of a breach and for giving an appropriate remedy." (*Quotations.*) *Id.* In contrast, if "a supposed 'contract' does not provide a basis for determining what obligations that parties have agreed to, and hence does not make possible a determination what those agreed obligations have been breached, there is no contract." *Id.*

A contract can be created by the conduct of the parties, without spoken or written words. This is sometimes considered an implied-in-fact contract. *Marvin v. Marvin* (1976) 18 Cal.3d 660, 670. "As to the basic elements [of a contract cause of action], there is no difference between an express and implied contract ... While an implied in fact contract may be inferred from the conduct, situation or mutual relation of the parties, the very heart of this kind of agreement is an intent to promise." *Division of Labor Enforcement v. Transpacific Transportation Co.* (1977) 69 Cal.App.3d 268, 275.

Moreover, where a cause of action based on contract, personal judgment against the known agent of a disclosed principal is unjustified. *Hayman v. Shoemaker* (1962) 203 Cal.App.2d 140; also see *Automatic Poultry Feeder Co. v. Wedel* (1963) 213 Cal.App.2d 509. The only theory of agency liability for contract claims is governed by Section 2343 of the Civil Code, which requires either a writing or conduct by the agent that is "wrongful in (its) nature."

Finally, a plaintiff cannot maintain causes of action in professional negligence and breach of contract where no independent duty exists. *Freeman and Mills, Inc. v. Belcher Oil Co.* (1995) 11 Cal.4th 85, 103.

In the instant matter, there is no duty owed by Defendant to Plaintiff in the second cause of action that is independent from that in the first. The terms at issue of the alleged implied contract depend completely on standards of care in the veterinary profession. Plaintiff alleges that a breach of contract occurred by virtue of Defendant's improper diagnosis and treatment of Chloe. Yet there is no written agreement defining these

terms, nor is there any alleged conduct by the Defendant – other than his treatment of Chloe – that gives these terms any meaning. The only source of meaning for these terms is from the veterinary professional standards of care, if at all.

Yet this duty is precisely what is at issue under the first cause of action. There are no alleged terms that are born from a different source. In both causes of action, the breach can only occur by virtue of Defendant not maintaining a level of care particular to the veterinary profession.

Even assuming, for the sake of argument, that independent duties do exist with respect to the two causes of action, a breach of contract action does not lie under a theory of agency in this matter. *Hayman* seems directly on point, in that Plaintiff is well aware that Defendant is acting as an agent for VCA, at minimum. The only doctrine of agency liability of which this court is aware is that under Section 2343 of the Civil Code. Yet there is no writing alleged in this matter, nor are there any allegations that Defendant's actions were wrong in their nature.

And even if the issues above were to resolve in Plaintiff's favor, the allegations fail to offer any suggestion on how Defendant Atwater's conduct reflected an assent to the terms that Plaintiff has alleged comprised the implied contract.

Plaintiff suggests that there is something special about the relationship between a veterinarian and the owner of the pet he treats, such that any treatment by a veterinarian automatically invokes and includes particular terms of an agreement to which that veterinarian is bound.

But there doesn't seem to be any law supporting this position. For instance, Plaintiff cites *Loube v. Loube* (1998) 64 Cal.App.4<sup>th</sup> 421, at 429, for the proposition that the very existence of professional licensing regulations confer contractual obligations on parties entering into professional service agreements. Yet in *Loube*, the issue was whether a cause of action for ordinary negligence was actually an action on the underlying contract between the parties. The court found in the negative, distinguishing the matter from causes of action for professional negligence, where a duty arises "only because the parties have a contractual agreement." *Loube v. Loube, supra*, 64 Cal.App.4<sup>th</sup> at 429.

And certainly the fact that a plaintiff may have alleged Professional Negligence as a cause of action does not, by the mere fact of its allegation, prove the existence of any agreement.

Plaintiff also cites Section 3051 of the Civil Code to argue that implied contracts always exist between veterinarian and the owner of the treated pet.

But Section 3051 of the Civil Code is a statute about liens, and is thus inapposite: Defendant does not possess a lien on any property of Plaintiff.

Thus, the Demurrer to the Second Cause of Action with respect to Defendant Atwater is sustained.

Further, the court denies Plaintiff's request for leave to amend the second cause of action, yet again. Given the analysis above, the court finds that, in all probability, amendment would be futile.

**Disposition**

Defendant's Demurrer to the second cause of action is sustained.

Plaintiff's request for leave to amend with respect to Defendant Atwater is denied.

Defendant to file order.

Plaintiff to file amended complaint, only reflecting the first cause of action, within 10 days of this order.

**11. 9:00 AM CASE NUMBER: L25-05676**

**CASE NAME: JULIE SCHINDLER VS. STEPHEN ATWATER**

**\*HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF SECOND AMENDED COMPLAINT**

**FILED BY: ATWATER, STEPHEN W**

**\*TENTATIVE RULING:\***

On 2/3/26, this court sustained, in part, a demurrer by the Defense to the First Amended Complaint ("FAC") of the Plaintiff. The ruling ("2/3 Ruling") overruled the demurrer to the claim of professional negligence, but allowed Plaintiff leave to amend only the cause of action with respect to breach of contract. The only defendant in the FAC was Atwater.

Subsequently, on 2/13/26, Plaintiff filed a Second Amended Complaint ("SAC"), in which she added Breach of Contract as a cause of action, but also added the defendants VCA Animal Hospitals, VCA Inc., MARS PETCARE US, Inc, and DOES 1 through 10.

Defendant filed a timely Motion to Strike. Plaintiff filed a response, and Defendant filed a Reply.

**Background**

The following is a brief synopsis of the allegations in the SAC.

Plaintiff brought her cat, Chloe, to the VCA offices for treatment, upon the